

25AVCV01251 25AVCV01251

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-27

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Case Number: 25AVCV01251 Hearing Date: August 27, 2026 Dept: A14

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES
– NORTH DISTRICT

MUIDEEN GANIYU,

Plaintiff,

v.

FREDD GARCIA, an individual; BO

KIM, an individual; MANUEL TAMBUNTING, an individual; and DOES 1 through 25,
inclusive,

Defendants.

Case

Number 25AVCV01251

[TENTATIVE]

STATEMENT OF
DECISION

Date

of Hearing: August 27, 2026

Dept. A-14

Judge William H.
Forman

I.

Background

This is a breach of contract action. Plaintiff's counsel J. Owen Murrin of Murrin Law Firm (Counsel) moves to be relieved as counsel.

On September 24, 2025, Plaintiff Muideen Ganiyu (Plaintiff) filed a complaint against Defendants Fredd Garcia (Garcia), Bo Kim (Kim), and Manuel Tambunting (Tambunting) (collectively Defendants), asserting fourteen causes of action for (1) breach of contract, (2) violation of Civil Code section 1102, (3) violation of Civil Code section 1102.6, (4) violation of Civil Code section 1102.13, (5) violation of Civil Code section 2079, (6) violation of Business and Professions Code section 10176(a), (7) fraudulent concealment (Civil Code sections 1709, 1710), (8) negligent misrepresentation, (9) professional negligence, (10) intentional infliction of emotional distress, (11) unjust enrichment, (12) fraud, (13) fraudulent inducement, and (14) negligence per se.

Plaintiff alleges that on September 14, 2024, Plaintiff entered into a Residential Purchase Agreement to purchase the real property located at 37643 Barrinson Street, Palmdale, CA 93550 (Property) for \$469,000. (Compl., ¶ 14.) Plaintiff asserts that Garcia acted as the seller's agent, while Kim served as the supervising broker, and Kim was on notice of Garcia's misconduct and failed to take action. (Compl., ¶ 15.) Plaintiff claims the Property was marketed and sold as a 4-bedroom, 3-bathroom, 1,706 square foot single family home suitable for immediate residential use, but that the conditions of the Property were falsely represented and that Defendants together coordinated a scheme to defraud Plaintiff by failing to disclose extensive defects in the Property. (Compl., ¶¶ 17-20.)

On December 18, 2025, litigation in the present case was stayed pending completion of mediation.

On June 22, 2026, counsel provided the Court with an update on mediation proceedings and the stay was lifted.

On July 13, 2026, Counsel filed the present motion to be relieved. This motion is unopposed.

On August 10, 2026, Defendants Garcia and Kim filed a motion to stay the case and compel arbitration, which is set for hearing on September 22, 2026.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

“If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” (Cal. Rules of Court, rule 3.1362(d)(1).) “[C]urrent’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned...is not, by itself, sufficient to demonstrate that the address is current.” (Id at rule 3.1362(d).)

III.

Discussion

Application – Counsel

moves to be relieved as counsel for Plaintiff. Counsel has complied with the statutory requirements of Rule 3.1362 and has filed an MC-051 containing all required information and directed to Plaintiff and served via electronic mail and standard mail. Counsel has also provided an MC-052 form, declaring that there has been an irretrievable breakdown in the Attorney-Client relationship, professional consideration requires termination of representation, circumstances have arisen rendering continued representation impossible, and conflicts have arisen which make it impossible for Counsel to continue representation. Counsel also declares it is in Plaintiff’s best interest to obtain different representation. The MC-052 form also provides that Plaintiff’s last known address has been confirmed as current within the past 30 days by mail, telephone, and communications, and appropriately lists the hearings on calendar at the time of filing. Finally, Counsel has provided an MC-053 Order form with all required information.

The Court finds minimal prejudice

to Plaintiff. While there is a hearing on calendar for the motion to stay proceedings and compel arbitration on September 22, 2026, the Court finds there

is sufficient time for Plaintiff to retain counsel to represent him in this hearing if he so chooses. The Court also notes that Plaintiff's subsequent counsel, if he chooses to so retain, has the option of brief continuance of the hearing if retained without sufficient time to prepare, however the case is in the beginning stages and little has transpired on the record. The Court also notes that no trial date has been set.

Accordingly, Counsel's motion to be relieved is GRANTED.

IV.

Conclusion

Plaintiff's counsel J. Owen Murrin of Murrin Law
Firm's Motion to Be Relieved as Counsel is GRANTED